

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MONIKA MASTALEREK,

Petitioner

VS.

DANIEL LOBERT,

Respondent

) Case Number: FDI-23-798868

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: CHILD SUPPORT, PROPERTY CONTROL, PAYMENT OF RENT AND
HOUSEHOLD EXPENSES

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Monika Mastalerek (Mother) and Respondent Daniel Lobert (Father).
They share one minor child: Matthew Lobert (DOB: 11/27/18).
- 2) On 12/4/25, the Court modified the prior 7/15/25 support order and ordered Father to pay Mother \$2,036 per month in temporary monthly spousal support and \$1,314 in guideline monthly child support. The Court also ordered Father to continue to share equally the monthly rent obligation so long as both parties continue to reside in the residence, issued orders regarding child support add-on expenses, and maintained its prior work search order for Mother. See Findings and Order After Hearing (FOAH) filed 12/24/25.
- 3) On 2/4/26, the Court issued a Restraining Order After Hearing (ROAH) that expires 2/4/29 wherein Mother is the protected party, and Father is the restrained party. Father was ordered to move out of the residence.

- 1 4) On 4/26/26, the Court ordered Father to have unsupervised parenting time with the minor child
2 every other week on Saturdays and Sundays from 10 am to 6 pm plus Thursday and Friday
3 evenings from pick-up afterschool to 8 pm on opposite weeks. See FOAH filed 5/5/26.
- 4 5) On 4/24/26, Mother filed an ex parte Request for Order seeking orders requiring Father to: (a)
5 pay his portion of the rent directly to the landlord (and/or not deduct it from Mother's support
6 payment unless the rent has been paid); (b) continue paying support as ordered; (c) continue
7 contributing to Mother's household expenses; and (d) register and use OurFamilyWizard (OFW)
8 for communications regarding the minor child. Mother asserts that Father stopped paying his
9 portion of her rent and reduced child support payments which created a financial hardship for her
10 and the minor child.
- 11 6) On 4/24/26, Father filed a Responsive Declaration in opposition to Mother's Request for Order.
12 Father states he paid rent before it was due every month and disputes Mother's allegations. Father
13 states that despite support being reduced pursuant to the 12/4/25 order, he continues to pay
14 \$4,426 in monthly support plus all household bills. Father asserts that he should not be court
15 ordered to communicate with Mother via OFW as his oncologist recommends that he maintain a
16 low-stress lifestyle. Father attached a letter from his oncologist.
- 17 7) On 4/24/26, the Court denied Mother's request for emergency relief pending hearing set on
18 6/23/26.
- 19 8) On 6/12/26, Mother filed a Supplemental Declaration asserting that Father resumed paying his
20 share of her rent after being served with the ex parte Request for Order. Mother states that the
21 financial issues were temporarily resolved, but the communication issue remains ongoing. Mother
22 reiterates her request to use OFW for communications regarding the minor child.
- 23 9) On 6/17/26, Father filed a Supplemental Declaration refuting Mother's position. Father reasserts
24 that the Court should deny Mother's request for OFW. Father states the restraining order includes
25 a provision for brief, peaceful communication about the court-ordered visits only.

26 **B. Findings and Order**

- 27 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
28 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
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1 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
2 child is the United States.

3 2) Moving forward, the parties shall communicate with each other using the Our Family Wizard
4 (OFW) application.

5 3) Both parties shall download the application by 6/26/26 at 5 pm.

6 4) Each party shall be responsible for their own fees associated with the use of OFW.

7 5) The parties shall communicate politely and respectfully, and only about the minor child. This
8 includes messages regarding the parenting time schedule, exchanges of the minor child,
9 appointments involving the health and welfare of the minor child, education and extracurricular
10 activities, and child support add-on expenses.

11 6) The parties are encouraged to check OFW messages regularly and respond promptly to messages
12 received; however, this platform shall only be used for brief and necessary co-parenting
13 communications.

14 7) The Court will prepare the Findings and Order After Hearing.
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